

Court No. - 3

Case :- WRIT - C No. - 3178 of 2012

Petitioner :- Haneefa Begam

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kumar Anish

Respondent Counsel :- C.S.C.,Dr. Rajesh Tripathi

Hon'ble Amitava Lala,J.

Hon'ble Pradeep Kumar Singh Baghel,J.

Leave is granted to the learned Counsel appearing for the petitioners to make the U.P.Power Corporation Limited as party respondent by red ink during the course of the day.

Let the matter appear before appropriate Bench.

Order Date :- 18.1.2012

MAA/-

Court No. - 21

Case :- WRIT - C No. - 3178 of 2012

Petitioner :- Haneefa Begam

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Kumar Anish

Respondent Counsel :- C.S.C.,Dr. Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Heard learned counsel for the petitioner and Sri Rajesh Tripathi appearing for respondent No.2.

This writ petition has been filed against the order dated 30th April, 2011 passed by the Consumer Grievance Redressal Forum.

Learned counsel for the respondents submits that under Clause 7.10(iv) of the Electricity Supply Code, 2005, the petitioner has statutory remedy before the Ombudsman.

There being statutory remedy available to the petitioner against the order impugned, the writ petition cannot be entertained. The petitioner may avail the statutory remedy as provided under Clause 7.10(iv) of the Electricity Supply Code, 2005.

With the above observation, the writ petition is disposed of.

Order Date :- 30.1.2012

Rakesh